

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
1	20CV361306	EDGE LAW GROUP vs BOMI JOSEPH et al	The Court set this hearing for Defendants to show cause why terminating sanctions should not be imposed, including striking defendants' answers and dismissing their cross-complaints, for their attempt to commit fraud on the Court during the July 9, 2024 trial setting conference. Nothing is on file with the Court to respond to the two declarations substantiating that this fraud took place. Accordingly, the Court intends to impose the outlined terminating sanctions, default the defendants, and have Plaintiff move forward by default judgment.
2-3	22CV403980	Amel Mohamed vs Akamai Technologies, Inc. et al	Jonathan Cavalier's and Timothy McCarthy's unopposed pro hac vice applications are GRANTED. Court to use form of orders on file.
4	22CV404571	Lori Henderson vs Mark Emerson et al	Plaintiff's motion to compel is GRANTED. Ms. Henderson's declaration sets forth specific facts constituting good cause for believing additional documents exist that were not produced. Defendant's only response to this declaration is to point to its PMQ's deposition testimony that all documents were produced. However, not only was that answer given "subject to objections", but it related to a list of documents served with the PMQ notice, not each of the requests before the Court, and it does not detail what document repositories were searched. Defendant's privacy, trade secret, attorney-client privilege, and relevance objections are not well taken. Defendant is a company; it owns its employees' communications conducted using company equipment; there is no employee right to privacy of those communications. (See, e.g., <i>Holmes v. Petrovich Development Co., LLC</i> (2011) 191 Cal. App. 4th 1047, 1051-1052 (finding employee's communications with counsel using company computers were not protected by the attorney-client privilege.) To the extent Defendant communicated with counsel regarding Ms. Henderson before this lawsuit was filed, those communications are relevant and should be listed on a privilege log, which it appears Defendant did produce. And, Defendant's sales and compensation data can be produced subject to a protective order, if it is in fact trade secret information. Given the nature of the allegations in the complaint, these discovery requests seek relevant information, and Defendant fails to explain the missing information detailed in Ms. Henderson's declaration. Accordingly, with 20 days of service of this formal order Defendant is ordered to (1) amend its written responses to each request to detail (a) what repositories it searched for responsive documents, (b) whether it is withholding any documents based on its objections and, if so what documents and what objections, (c) whether any documents are now missing, and (d) why such documents are missing; (2) produce any additional documents located during this additional search; and (3) pay Plaintiff \$5,685 in sanctions. Court to prepare formal order.